

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL APPLICATION)

Criminal Revision No. 4704 of 2022

Abdul Matin.

...Convict-petitioner

-VERSUS-

The State and another.

... Opposite parties

Present
Mr. Justice Mamnoon Rahman

Mr. Md. Golam Hossain Sarwar, Adv.
... For the petitioner.
Mr. Md. Taifoor Kabir, DAG with
Mr. Md. Lokman Hossain, AAG
Mr. Md. Hatem Ali, AAG
....For the State.

Heard & Judgment on: 30.11.2023

In an application under section 439 of the Code of Criminal Procedure rule was issued calling upon the opposite parties to show cause as to why the judgment and order of conviction and sentence dated 27.10.2022 passed by the learned Senior Sessions Judge, Jamalpur in Criminal Appeal No. 136 of 2022 arising out of C.R. Case No. 92(1)2010 under section 4 of the Dowry Prohibition Act, 1980 affirming the judgment and order of conviction and sentence dated 23.05.2022 passed by the learned Senior Judicial Magistrate, 4th Court, Jamalpur in C.R. Case No. 92(1)2010, convicting the petitioner under section 04 of the Dowry Prohibition Act, 1980 and sentencing him to suffer simple imprisonment for 01 (one) year and 01 (one) month and also to pay a fine of Tk. 10,000/- in default to suffer simple imprisonment for a period of 04 (four) months, should not be set aside

and/or such other or further order or orders passed as to this Court may seem fit and proper.

The prosecution case in short is that P.W. 1 as complainant filed a Complaint Petition on 10.05.2010 against the petitioner before the court of Senior Judicial Magistrate, Jamalpur being Complaint Petition Case No. 92(1) of 2010 alleging *inter-alia* that the petitioner married her on 25.11.2004 and after that he was torturing her for demanding Tk. 1,00,000/- as dowry and also she filed another case being Nari-O-Shishu Nirjatan Daman Case No. 533 of 2006 under section 11(ga)/30 of the said Ain. After filing of the case the petitioner took her back to his house, but ultimately on 18.09.2009 forced her to leave the house for the demand of dowry. Hence, the case.

The trial court appointed Upazilla Election Officer as an Inquiry Officer who submitted report and on the basis of the same the trial court proceeded with the case and examined as many as four witnesses. The trial court after hearing the parties and considering the facts and circumstances, convicted the petitioner under section 4 of the Dowry Prohibition Act, 2018. Being aggrieved and dissatisfied with aforesaid judgment and order of conviction and sentence the present petitioner as appellant preferred Criminal Appeal No. 136 of 2022 before the learned District Judge, Jamalpur wherein the lower appellate court after hearing the parties and considering the facts and circumstances vide the judgment and order dated 27.10.2022 dismissed the appeal and thereby maintained the judgment and order of conviction and sentence passed

by the trial court. Being aggrieved and highly dissatisfied with the aforesaid judgment and order of conviction and sentence the petitioner moved before this court by way of revision and obtained the present rule.

Mr. Md. Golam Hossain Sarwar, the learned Advocate appearing on behalf of the petitioner submits that the court below without applying their judicial mind and without considering the facts and circumstances most illegally and in an arbitrary manner passed the impugned judgment and order of conviction and sentence which requires interference by this court. He submits that admittedly the case was filed long after eight months without any credible explanation and the trial court ought to have considered the same and acquitted the petitioner to that count. He further submits that in the present case in hand there is no eye witness of the occurrence as narrated by the P.W. 1 rather the others are hearsay but highly interested witnesses and the petitioner is entitled to get the benefit of doubt because of the absence of credible and unimpeachable oral evidence to that effect.

Mr. Md. Taifoor Kabir, the learned Deputy Attorney General for the state vehemently opposes the rule. He submits that the courts below on proper appreciation of the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order passed by the courts below which requires no interference by this court.

I have perused the impugned judgment and order passed by the lower appellate court as well as trial court. I have also perused the revisional application, grounds taken thereon, necessary papers and documents as well as the Lower Court records and I have heard the learned Advocate for the petitioner as well as the learned Deputy Attorney General for the State.

On perusal of the same, it transpires that admittedly the petitioner stood charge for an offence under section 4 of the Dowry Prohibition Act, 2018 before the trial court. P.W. 1 who is the complainant in her deposition stated that on 18.09.2009 the petitioner demanded Tk. 1,00,000/- as dowry and as she failed to pay the same the convict appellant forced her to leave the house and she filed the complaint petition. In her cross-examination she categorically stated that she filed the case after eight months from the date of demand of the dowry. P.W. 2 is the mother of the P.W. 1 who stated that she heard the occurrence from P.W. 1. P.W. 3 is the brother he also stated that he heard the occurrence from her sister. Also P.W. 4 stated that he also heard the occurrence from his sister P.W. 1.

So, it transpires that during trial the prosecution examined as many as four witnesses, namely the complainant, her mother and two brothers. But on meticulous analysis of the evidence of the prosecution witnesses, it transpires that except P.W. 1 there is no eye witness regarding the occurrence in question. It further transpires that except P.W. 1 all the witnesses though closed relation of the P.W. 1 stated that

they heard the occurrence from the P.W. 1. Apart from that on perusal of the inquiry report conducted by the Upazilla Election Officer, Jamalpur it transpires that though one Mozammel Haque stated that he paid an amount of Tk. 1,00,000/- to the petitioner but he was not examined in the case in hand. To prove a charge against a person under section 4 of the Dowry Prohibition Act, 2018 the prosecution is to prove the same by sufficient credible and unimpeachable evidence. But in the present case in hand, it clearly transpires that there is no eye witness or credible evidence to corroborate the testimony of P.W.1.

Apart from that it transpires that the case was filed long after eight months without any single explanation regarding the delay in filing of the case which also creates serious doubt in the prosecution case in hand. Hence, I find substance in the instant rule.

Accordingly, the instant rule is made absolute. The impugned judgment and order passed by the courts below are hereby set aside. The petitioner be discharged from his bail bond and acquitted from the charge leveled against him.

Send down the L.C. records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

Emdad. B.O.